

Court No. - 39

Case :- WRIT - C No. - 35825 of 2018

Petitioner :- Ram Pat Ram

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sadhu Sharan

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble B. Amit Sthalekar,J.

Hon'ble Rajiv Joshi,J.

Sri Sadhu Sharan, learned counsel for the petitioner, Sri F.A. Ansari, learned counsel for the respondent no.3 and the learned Standing Counsel for the respondents no.1 & 2.

The petitioner in the writ petition is seeking quashing of the provisional assessment electricity bill of Rs. 35,288/- dated 05.12.2017 as well as the demand notice dated 16.03.2018 for Rs.35,313/-.

The allegation is that the petitioner had committed theft of electricity. A First Information Report has already been lodged against the petitioner, copy of which has been filed as Annexure-5 to the writ petition.

In our opinion, the petitioner has a remedy by filing his objection before the respondent no. 3 - Executive Engineer, Electricity Distribution Division-1, U.P. Power Corporation, Ghazipur as per the provisions of Para 6.5 of the Electricity Supply Code, 2005.

The writ petition is accordingly **dismissed**.

However, it is provided that if the petitioner files his objection before the respondent no.3 within one week from today alongwith certified copy of this order, the respondent no.3 shall thereafter consider and decide the objection of the petitioner in accordance with law within a further period of one month.

Order Date :- 29.10.2018

N Tiwari